

HOUSE No. 1501

The Commonwealth of Massachusetts

PRESENTED BY:

Michael J. Finn

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to improve municipal equity within the emergency assistance shelter program.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Michael J. Finn</i>	<i>6th Hampden</i>	<i>1/17/2025</i>

HOUSE No. 1501

By Representative Finn of West Springfield, a petition (accompanied by bill, House, No. 1501) of Michael J. Finn for legislation to improve municipal equity within the emergency assistance shelter program. Housing.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE DOCKET, NO. 4536 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to improve municipal equity within the emergency assistance shelter program.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 30 of chapter 23B of the General Laws, as appearing in the 2022
2 Official Edition, is hereby amended by adding the following subsection:-

3 (G) The executive office shall ensure that the total number of individuals per
4 municipality who are occupying hotels and motels under this section shall not exceed 1 per cent
5 of the municipality's population as enumerated by the most recent federal decennial census.

6 The executive office shall ensure that municipalities receive no less than 24 hours' notice
7 prior to a family being placed in a hotel or motel in the municipality.

8 SECTION 2. (a) During the state of emergency declared by the governor on August 8,
9 2023, the commonwealth, through its executive office of housing and livable communities, shall

10 pay in advance to a residential homeowner of an owner-occupied residential dwelling weekly
11 rent for the emergency sheltering of a person or household pursuant to the emergency
12 declaration. Such payment shall be equal to or greater than 150 per cent of the monthly fair
13 market rent, adjusted by household size and paid in weekly amounts.

14 (b) The payment by the commonwealth for such emergency sheltering is hereby declared
15 to be a public purpose pursuant to Article 47 of the Massachusetts Constitution.

16 (c) Such emergency sheltering shall not be subject to any summary process procedure,
17 certain public health laws, state or local zoning laws, by-laws or ordinances or the laws of
18 landlord tenant.

19 (d) Any residential homeowner sheltering such persons shall qualify for any public
20 programs, loans, grants or other funding sources for upgrades or improvements to the dwelling
21 used to provide emergency shelter pursuant to this act.

22 (e) Any recovery by a person sheltered under this act for civil liability against a
23 residential homeowner providing emergency shelter shall be limited to not more than \$10,000;
24 provided, however, such cap shall not apply to gross negligence or intentional acts by the
25 homeowner.

26 (f) For the purposes of this section such housing shall be governed by rules and
27 regulations adopted by the executive office of housing and livable communities to implement
28 this section and the August 8, 2023 state of emergency declared by the governor. Such rules and
29 regulations shall provide for circumstances under which the residential homeowner and the
30 person receiving shelter may modify or terminate the emergency sheltering agreement.

31 SECTION 3. Section 2 shall be repealed upon the declaration of the governor that the
32 state of emergency declared on August 8, 2023 no longer exists.